

the motion to quash and therefore irrelevant to the issues currently before the Court. Plaintiff's request for sanctions is denied.

### **Summary and Conclusion**

Defendants present sufficient evidence to refute the claims in the Proofs of Service that they were personally served with the summons and complaint in this action. Plaintiff fails to present any evidence to support her position. In addition, all of Plaintiff's procedural arguments regarding the motion to quash are without merit.

As such, Defendants' Motion to Quash is **granted**.

"California courts have held that 'compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. ... Thus, a default judgment [or default] entered against a defendant who was not served with a summons in the manner prescribed by statute is void.'" (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 214.) "The court may, upon ... its own motion, ... set aside any void judgment or order." (Code Civ. Proc. § 473(d).) Under section 473, subdivision (d), the Court may set aside a default "which is valid on its face, but void, as a matter of law, due to improper service." (*First American Title Ins. Co. v. Banerjee* (2022) 87 Cal.App.5th 37, 42.)

Given the above ruling of the Court finding service of process was not accomplished, the Defaults entered against the Defendants on February 24, 2026, are void as a matter of law. Accordingly, the Defaults against the Defendants are also set aside as of the date of this Order. The August 14, 2026, hearing on Defendants' motion to set aside is vacated.

22. 9:00 AM CASE NUMBER: C24-02795  
CASE NAME: XAVIER ALVAREZ VS. JAMES GUDE, M.D  
\*HEARING ON MINOR'S COMPROMISE RE: XAVIER ALVAREZ  
FILED BY: XAVIER ALVAREZ  
**\*TENTATIVE RULING:\***

Petitioner Gezal Rivera (as parent and Guardian ad Litem)'s Petition for Approval of Compromise of Xavier Alvarez's Claim ("Petition"), filed on June 26, 2026, is granted.

After careful examination of the Petition and proposed order, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Xavier Alarez's Claim and the Proposed Order lodged with the Court on June 26, 2026.